# SOCIAL JUSTICE, INCLUSION AND WELFARE-STATE FRAMEWORK

**THREE DIMENSIONS OF JUSTICE → EQUALITY LADDER → CONSTITUTIONAL ANCHOR → CAPABILITY STANDARD → AUTHORITIES BANK → SOCIAL PROTECTION FLOOR CARD**

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure: the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

00

STAGE 00

## THREE DIMENSIONS OF JUSTICE

THREE DIMENSIONS OF JUSTICE · WHO RECEIVES WHAT · TRANSFERS, RESERVATION, SERVICES, SOCIAL SECURITY · HOW IS THE HARM UNDONE · COMPENSATION, REHABILITATION, PENALTY, RESTORATION · WHOSE PERSONHOOD IS DENIED · ANTI-DISCRIMINATION LAW, REPRESENTATION, DIGNITY · MOST VULNERABLE-GROUP POLICY NEEDS ALL THREE; FAILURE IN ONE

| CORE CLAIM | MECHANISM | CONSEQUENCE / LIMIT |
|---|---|---|
| DISTRIBUTIVE → who receives what: transfers, reservation, services, social security | RECOGNITIVE → whose personhood is denied: anti-discrimination law, representation, dignity | MUST REMEMBER: Social justice joins equal citizenship, redistribution, recognition,... |
| CORRECTIVE → how is the harm undone: compensation, rehabilitation, penalty, restoration | RULE → most vulnerable-group policy needs all three; failure in one perpetuates injustice | DISTRIBUTIVE → who receives what: transfers, reservation, services, social security |

**CORE CLAIM**
- DISTRIBUTIVE → who receives what: transfers, reservation, services, social security
- CORRECTIVE → how is the harm undone: compensation, rehabilitation, penalty, restoration

**MECHANISM**
- RECOGNITIVE → whose personhood is denied: anti-discrimination law, representation, dignity
- RULE → most vulnerable-group policy needs all three; failure in one perpetuates injustice

**CONSEQUENCE / LIMIT**
- MUST REMEMBER: Social justice joins equal citizenship, redistribution, recognition,...
- DISTRIBUTIVE → who receives what: transfers, reservation, services, social security

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → most vulnerable-group policy needs all three; failure in one perpetuates injustice.**

01

STAGE 01

## EQUALITY LADDER

EQUALITY LADDER · FORMAL EQUALITY · SAME RULE FOR ALL; STRUCTURAL DISADVANTAGE SURVIVES THE RULE · SUBSTANTIVE EQUALITY · RESERVATION, TARGETED TRANSFERS, SPECIAL PROVISIONS · CAPABILITY EQUALITY · DID THE SUPPORT EXPAND WHAT A PERSON CAN DO · INPUT DELIVERED IS NOT THE SAME CLAIM AS CAPABILITY

FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule

SUBSTANTIVE EQUALITY; reservation, targeted transfers, special provisions → CAPABILITY EQUALITY; did the support expand what a person can do and be → TEST → input delivered is not the same claim as capability expanded

**CORE CLAIM**
- FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule
- SUBSTANTIVE EQUALITY: reservation, targeted transfers, special provisions

**MECHANISM**
- CAPABILITY EQUALITY: did the support expand what a person can do and be
- TEST → input delivered is not the same claim as capability expanded

**CONSEQUENCE / LIMIT**
- FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule
- SUBSTANTIVE EQUALITY: reservation, targeted transfers, special provisions

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FORMAL EQUALITY → same rule for all; structural disadvantage survives the rule.**

02

STAGE 02

## CONSTITUTIONAL ANCHOR

CONSTITUTIONAL ANCHOR · SOCIALIST REPUBLIC; JUSTICE SOCIAL, ECONOMIC AND POLITICAL · PART IV · ARTICLES 38, 39, 41 TO 43, 46 TO 47 · ARTICLE 46 · EDUCATIONAL AND ECONOMIC INTERESTS OF SCS, STS AND WEAKER · NOT DIRECTLY JUSTICIABLE; INTERPRETIVE AID, RECORDED WITH MINERVA MILLS

PREAMBLE → socialist republic; justice social, economic and political → PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare → ARTICLE 46 → educational and economic interests of SCs, STs and weaker sections → LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980

**CORE CLAIM**
- PREAMBLE → socialist republic justice social, economic and political
- PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state

**MECHANISM**
- ARTICLE 46 → educational and economic interests of SCs, STs and weaker sections
- LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980

**CONSEQUENCE / LIMIT**
- PREAMBLE → socialist republic justice social, economic and political
- PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980.**

03

STAGE 03

## CAPABILITY STANDARD

CAPABILITY STANDARD · ACHIEVED STATES · BEING NOURISHED, BEING HEALTHY, BEING LITERATE · THE REAL FREEDOMS TO ACHIEVE THOSE STATES · OPEN-ENDED FRAMEWORK; SPECIFICATION LEFT TO PUBLIC REASONING · TEN CENTRAL CAPABILITIES AS A THRESHOLD A JUST SOCIETY · EQUAL INCOME YIELDS UNEQUAL CAPABILITY ACROSS HEALTH AND EXCLUSION

**CORE CLAIM**
- FUNCTIONINGS → achieved states: being nourished, being healthy, being literate
- CAPABILITIES → the real freedoms to achieve those states

**MECHANISM**
- SEN → open-ended framework; specification left to public reasoning
- NUSSBAUM → ten central capabilities as a threshold a just society must secure

**CONSEQUENCE / LIMIT**
- CONSEQUENCE → equal income yields unequal capability across health and exclusion
- FUNCTIONINGS → achieved states: being nourished, being healthy, being literate

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONSEQUENCE → equal income yields unequal capability across health and exclusion.**

04

STAGE 04

## AUTHORITIES BANK

AUTHORITIES BANK · DIFFERENCE PRINCIPLE · INEQUALITY JUST ONLY IF IT BENEFITS THE LEAST ADVANTAGED · FAIR EQUALITY OF OPPORTUNITY AS THE COMPANION STANDARD · REDISTRIBUTION, RECOGNITION AND REPRESENTATION; MISRECOGNITION BLOCKS DISTRIBUTION · WARNING AGAINST POLITICAL EQUALITY AMID SOCIAL AND ECONOMIC INEQUALITY · RECOGNITION CANNOT SUBSTITUTE FOR SERVICES, ASSETS AND EMPLOYMENT

| CORE CLAIM | MECHANISM | CONSEQUENCE / LIMIT |
|---|---|---|
| RAWLS → difference principle: inequality just only if it benefits the least advantaged | FRASER → redistribution, recognition and representation; misrecognition blocks distribution | QUALIFY → recognition cannot substitute for services, assets and employment |
| RAWLS → fair equality of opportunity as the companion standard | AMBEDKAR → warning against political equality amid social and economic inequality | RAWLS → difference principle: inequality just only if it benefits the least advantaged |

**CORE CLAIM**
- RAWLS → difference principle: inequality just only if it benefits the least advantaged
- RAWLS → fair equality of opportunity as the companion standard

**MECHANISM**
- FRASER → redistribution, recognition and representation; misrecognition blocks distribution
- AMBEDKAR → warning against political equality amid social and economic inequality

**CONSEQUENCE / LIMIT**
- QUALIFY → recognition cannot substitute for services, assets and employment
- RAWLS → difference principle: inequality just only if it benefits the least advantaged

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: QUALIFY → recognition cannot substitute for services, assets and employment.**

05

STAGE 05

## SOCIAL PROTECTION FLOOR CARD

SOCIAL PROTECTION FLOOR CARD · SOCIAL PROTECTION FLOORS RECOMMENDATION, 2012, NO. 202 · GUARANTEE 1 · ACCESS TO ESSENTIAL HEALTH CARE, INCLUDING MATERNITY CARE · GUARANTEE 2 · BASIC INCOME SECURITY FOR CHILDREN · NUTRITION, EDUCATION AND CARE · GUARANTEE 3

INSTRUMENT → Social Protection Floors Recommendation, 2012, No. 202

GUARANTEE 1 → access to essential health care, including maternity care → GUARANTEE 2 → basic income security for children: nutrition, education and care → GUARANTEE 3 → basic income security in active age: sickness, unemployment, maternity, disability

**CORE CLAIM**
- INSTRUMENT → Social Protection Floors Recommendation, 2012, No. 202
- GUARANTEE 1 → access to essential health care, including maternity care

**MECHANISM**
- GUARANTEE 2 → basic income security for children: nutrition, education and care
- GUARANTEE 3 → basic income security in active age: sickness, unemployment, maternity, disability

**CONSEQUENCE / LIMIT**
- GUARANTEE 4 → basic income security for older persons
- STATUS → a Recommendation, not a ratified Convention; no self-executing domestic duty

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS → a Recommendation, not a ratified Convention; no self-executing domestic duty.**

06

STAGE 06

## UNIVERSALISM AGAINST TARGETING

UNIVERSALISM AGAINST TARGETING · LOWER STIGMA, LOWER EXCLUSION ERROR, HIGHER COST, HIGHER INCLUSION · CONCENTRATED RESOURCES, DOCUMENTATION BARRIERS, IDENTIFICATION DISPUTES · ERROR PAIR · INCLUSION ERROR IS LEAKAGE; EXCLUSION ERROR IS THE ELIGIBLE · INDIAN PRACTICE · UNIVERSAL BASIC SERVICES LAYERED ON TARGETED TRANSFERS AND RESERVATION · A PROMISE TO END LEAKAGE MUST STATE ITS EXCLUSION

| CORE CLAIM | MECHANISM | CONSEQUENCE / LIMIT |
|---|---|---|
| UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error | ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out | RULE → a promise to end leakage must state its exclusion consequence |
| TARGETING → concentrated resources, documentation barriers, identification disputes | INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation | UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error |

**CORE CLAIM**
- UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error
- TARGETING → concentrated resources, documentation barriers, identification disputes

**MECHANISM**
- ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out
- INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation

**CONSEQUENCE / LIMIT**
- RULE → a promise to end leakage must state its exclusion consequence
- UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → a promise to end leakage must state its exclusion consequence.**

07

STAGE 07

## EQUITY TYPES

EQUITY TYPES · HORIZONTAL EQUITY · EQUALS TREATED EQUALLY · VERTICAL EQUITY · UNEQUALS TREATED UNEQUALLY IN PROPORTION TO DISADVANTAGE · AFFIRMATIVE ACTION OPERATIONALISES VERTICAL EQUITY, NOT A BREACH OF · VERTICAL EQUITY NEEDS A DEFENSIBLE MEASURE OF DISADVANTAGE · CREAMY-LAYER EXCLUSION SHOWS TARGETING INSIDE AFFIRMATIVE ACTION

| CORE CLAIM | MECHANISM | CONSEQUENCE / LIMIT |
|---|---|---|
| HORIZONTAL EQUITY → equals treated equally | APPLICATION → affirmative action operationalises vertical equity, not a breach of equality | BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action |
| VERTICAL EQUITY → unequals treated unequally in proportion to disadvantage | CONDITION → vertical equity needs a defensible measure of disadvantage | HORIZONTAL EQUITY → equals treated equally |

**CORE CLAIM**
- HORIZONTAL EQUITY → equals treated equally
- VERTICAL EQUITY → unequals treated unequally in proportion to disadvantage

**MECHANISM**
- APPLICATION → affirmative action operationalises vertical equity, not a breach of equality
- CONDITION → vertical equity needs a defensible measure of disadvantage

**CONSEQUENCE / LIMIT**
- BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action
- HORIZONTAL EQUITY → equals treated equally

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action.**

08

STAGE 08

## WELFARE-STATE MODELS

WELFARE-STATE MODELS · STATE ACTS AFTER FAMILY AND MARKET FAIL; MEANS-TESTED AND · UNIVERSAL SERVICES AS A CITIZENSHIP RIGHT; DE-STIGMATISED BUT COSTLIER · RECORDED AS A HYBRID · STATUTORY ENTITLEMENTS LAYERED ON TARGETED SCHEMES · NAMED ENTITLEMENTS · NATIONAL FOOD SECURITY ACT, 2013; RIGHT TO EDUCATION ACT

**CORE CLAIM**
- RESIDUAL → state acts after family and market fail; means-tested and stigmatised
- INSTITUTIONAL → universal services as a citizenship right; de-stigmatised but costlier

**MECHANISM**
- INDIA → recorded as a hybrid: statutory entitlements layered on targeted schemes
- NAMED ENTITLEMENTS → National Food Security Act, 2013; Right to Education Act, 2009

**CONSEQUENCE / LIMIT**
- RESIDUAL → state acts after family and market fail; means-tested and stigmatised
- INSTITUTIONAL → universal services as a citizenship right; de-stigmatised but costlier

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NAMED ENTITLEMENTS → National Food Security Act, 2013; Right to Education Act, 2009.**

09

STAGE 09

## FIVE-STAGE WELFARE MECHANISM

FIVE-STAGE WELFARE MECHANISM · CONSTITUTIONAL FOUNDATION · PREAMBLE AND DIRECTIVE PRINCIPLES SET THE DIRECTION · LEGISLATIVE CONCRETISATION · PROTECTIVE STATUTES AND ENTITLEMENT STATUTES · SCHEME DESIGN AND BUDGET · TRANSFERS, SERVICES AND AFFIRMATIVE ACTION · INSTITUTIONAL DELIVERY

CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction → LEGISLATIVE CONCRETISATION; protective statutes and entitlement statutes → SCHEME DESIGN AND BUDGET; transfers, services and affirmative action → INSTITUTIONAL DELIVERY; ministries, commissions, anganwadi, health centre, school → OUTCOME MEASUREMENT; household surveys, administrative data and social audit

**CORE CLAIM**
- CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction
- LEGISLATIVE CONCRETISATION; protective statutes and entitlement statutes
- SCHEME DESIGN AND BUDGET: transfers, services and affirmative action

**MECHANISM**
- INSTITUTIONAL DELIVERY: ministries, commissions, anganwadi, health centre, school
- OUTCOME MEASUREMENT: household surveys, administrative data and social audit
- STOP TEST → an answer that ends at scheme design has described intent, not justice

**CONSEQUENCE / LIMIT**
- CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity,...

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity..**

10

STAGE 10

## FIVE RECURRING WELFARE GAPS

FIVE RECURRING WELFARE GAPS · THE ELIGIBLE PERSON IS NOT CORRECTLY LISTED; FIX THE · THE PROHIBITION OR PROTECTION IS NOT APPLIED; NAME THE · THE ENTITLEMENT DOES NOT REACH THE PERSON; TRACE THE · WHAT ARRIVES IS TOO POOR TO CHANGE ANYTHING; MEASURE · NOBODY ESTABLISHES WHETHER IT WORKED; DEMAND THE SURVEY AND · EVIDENCE LIMIT · MAP RIGHTS-HOLDER, DUTY-BEARER, INSTITUTION

IDENTIFICATION → the eligible person is not correctly listed; fix the roll, not the slogan → ENFORCEMENT → the prohibition or protection is not applied; name the enforcing authority → DELIVERY → the entitlement does not reach the person; trace the last mile → QUALITY → what arrives is too poor to change anything; measure the service, not the → OUTCOME-LEARNING → nobody establishes whether it worked; demand the survey and the round

**CORE CLAIM**
- IDENTIFICATION → the eligible person is not correctly listed: fix the roll, not the slogan
- ENFORCEMENT → the prohibition or protection is not applied; name the enforcing authority

**MECHANISM**
- DELIVERY → the entitlement does not reach the person; trace the last mile
- QUALITY → what arrives is too poor to change anything; measure the service, not the count

**CONSEQUENCE / LIMIT**
- OUTCOME-LEARNING → nobody establishes whether it worked; demand the survey and the round
- EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Map rights-holder, duty-bearer, institution,...

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Map rights-holder, duty-bearer, institution..**

11

STAGE 11

## ANSWER SPINE FOR A SOCIAL-JUSTICE DEMAND

ANSWER SPINE FOR A SOCIAL-JUSTICE DEMAND · NAME THE DEPRIVATION AND THE DIMENSION OF JUSTICE IT · SEPARATE THE ENTITLEMENT, THE SCHEME THAT CARRIES IT AND · CITE A DATED SURVEY OR ADMINISTRATIVE SOURCE AND STATE · GRADED VERDICT PLUS THE NAMED GAP AND AN EXPLICIT

OPEN → name the deprivation and the dimension of justice it engages → BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches → TEST → cite a dated survey or administrative source and state what it cannot prove → CLOSE → graded verdict plus the named gap and an explicit indicator caveat

**CORE CLAIM**
- OPEN → name the deprivation and the dimension of justice it engages
- BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches

**MECHANISM**
- TEST → cite a dated survey or administrative source and state what it cannot prove
- CLOSE → graded verdict plus the named gap and an explicit indicator caveat

**CONSEQUENCE / LIMIT**
- OPEN → name the deprivation and the dimension of justice it engages
- BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE → graded verdict plus the named gap and an explicit indicator caveat.**

E

EXTRA

## SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · CONSTITUTIONAL ANCHOR · PREAMBLE ("SOCIALIST," "JUSTICE — SOCIAL, ECONOMIC · LEGISLATIVE CONCRETISATION · PROTECTIVE LAWS (SC/ST ATROCITIES ACT, RPWD · ILO RECOMMENDATION 202 (2012) · ESTABLISHES A SOCIAL-PROTECTION FLOOR AS A · INSTITUTIONAL COMMISSIONS (NCW, NCM, NCPCR, NHRC)

**OPTIONAL SOURCE DEPTH**
- Constitutional anchor: Preamble ("socialist," "justice — social, economic
- Legislative concretisation: Protective laws (SC/ST Atrocities Act, RPwD
- ILO Recommendation 202 (2012): Establishes a social-protection floor as a
- CAUTION: Institutional commissions (NCW, NCM, NCPCR, NHRC): Quasi-judicial bodies

**ADVANCED DEBATE**
- CAUTION: NFSA 2013 as rights-based entitlement: Shifts PDS from discretionary scheme
- CAUTION: RTE 2009 + NEP 2020 tension: RTE mandates free, compulsory education 6-14;
- CAUTION: Manual scavenging as three-dimension test case: Prohibition (corrective),
- CAUTION: Boundary case — creamy-layer exclusion in OBC reservation: Targeting within

**LEGACY / NUANCE**
- CAUTION: Universalism vs targeting: Universalism reduces stigma and exclusion error
- CAUTION: Rights-based framing vs fiscal constraint: Entitlements (NFSA, RTE) create
- CAUTION: Capability measurement difficulty: Functionings are easier to observe
- CAUTION: Commission overload: NCW, NCM, NCPCR and NHRC can investigate and recommend

**OPTIONAL STATUS —** This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels